EXPOSED SYSTEMIC FAULTS

MUMBAI SERIAL TRAIN BLASTS (2006)

Seven coordinated blasts killed 189 and injured 800+. The Bombay **High Court acquitted all 12 accused in July 2025** (below), saying the prosecution had "utterly failed" and cited dubious identification parades and witness testimonies. The **Supreme Court stayed the acquittal** while allowing the 12 men to remain free; appeals are pending



PTI

MECCA MASJID BLAST (2007)

Eight killed in the Hyderabad mosque blast. All five accused, including Swami Aseemanand, **acquitted in 2018** after 64 of 226 witnesses turned hostile. The NIA did not appeal, citing lack of evidence

NITHARI KILLINGS (2005-06)



At least 16 children and women were sexually assaulted and murdered in a Noida locality, their remains discovered near the house of businessman M.S. Pandher (inset). His domestic help Surinder Koli's confession led to both being sentenced to death in multiple cases. But **Pandher was acquitted in 2023**, and **Koli walked free in November 2025** after his final conviction was overturned by the SC. It noted that "suspicion, however grave, cannot substitute proof"

AKSHARDHAM ATTACK (2002)

The terror attack in Gandhinagar killed 33. Six men convicted under POTA were **acquitted by the Supreme Court in 2014**, which said Gujarat Police relied on coerced confessions, case "collapsed at every turn"

BEST BAKERY CASE (2002)

Fourteen people were burnt alive in a mob attack during the Gujarat riots in Vadodara. **All 21 accused were acquitted in 2003** after 37 witnesses turned hostile. A Supreme Court–ordered **retrial led to mixed verdicts.** Four life terms were finally upheld by Bombay HC in 2012



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Former Police Commissioner, Kolkata

finds the evidence insufficient. Many times, acquittals in lower courts are overturned in the high court."

But courts do not operate in a sealed environment. Trials are often derailed because witnesses retract or dilute their statements. Nearly 57 per cent of trial delays stem from non-appearance of parties and witnesses. In the Best Bakery case during the Gujarat riots, key witness Zahira Sheikh recanted her testimony after alleged intimidation. In all, 37 witnesses turned hostile. "Given the dire shortage of judges and court infrastructure, delays are inevitable," says Soumyajit Raha, an advocate in the Calcutta High Court. "The longer a case drags on, the greater the opportunity for witnesses to be threatened, influenced or bought." Only recently, the Supreme Court reprimanded the Uttar Pradesh Police for failing to act on a threat complaint from a key witness in the 2021 Lakhimpur Kheri violence, involving Ashish Mishra, son of then Union minister Ajay Kumar Mishra 'Teni'.

Adding to the imbalance is the stark disparity in legal representation. Wealthy defendants can hire top lawyers, while public prosecutors remain poorly paid, overworked and often inexperienced in complex trials. "The defence hires the best," says former Kolkata police commissioner Soumen Mitra. "The state often sends someone with neither the training nor the motivation." Coordination between investigators and prosecutors is also alarmingly weak. "The officer who builds the case rarely sees it through to its conclusion," adds Mitra. Evidence is then presented without narrative continuity, and subtle but crucial links inside the case file get lost.